

Paint Trade HQ — Terms of Service

Draft for review · Version 1.0-draft · 18 September 2026

Draft prepared for the tester program. Have an Australian commercial lawyer review it before the public launch. Square-bracket items must be filled in before publishing.

These terms are a contract between you and **[Legal entity name] (ABN [ABN])** trading as Paint Trade HQ ("we", "us", "Paint Trade HQ"), of [registered address], for the use of the Paint Trade HQ web app, employee app, client links and related services (the "Service").

By creating an account, ticking the agreement box, or using the Service, you agree to these terms and to our Privacy Policy. If you are creating an account for a business, you confirm you are authorised to bind that business, and "you" means that business.

1. The tester program (applies until we say otherwise)

The Service is currently a **pre-release product** used by a small group of invited painting businesses. While the tester program runs:

- **No fee is charged.** Your account is on a free trial. We may extend the trial or convert it to a paid plan later, but only with at least 30 days' notice and never without your consent to pay.
- **It is a prototype.** Features may change, break, or be removed between one day and the next. The app is not guaranteed to be available, accurate or complete.
- **Keep a copy of anything important.** We may reset, migrate or wipe test data as part of development. Do not treat the Service as your only record of quotes, invoices, payments, timesheets or staff documents. Export or screenshot what you need.
- **Real clients at your own risk.** You may use the Service with real clients and staff, but you carry the responsibility for anything you send them (quotes, invoices, SMS, email, completion reports). Read before you send.
- **Feedback.** Anything you tell us about the Service (bug reports, ideas, screenshots, recordings) may be used by us to improve the product without payment or credit to you. Do not include other people's personal information in feedback unless it is necessary to show the problem.
- **Confidentiality.** Unreleased features, pricing and screenshots of the tester build are confidential until we launch publicly. Please do not post them publicly.
- **Access codes.** Your tester access code is for you and your business only. Do not share it.

2. Your account

- **Owner account.** The person who signs up is the account owner and is responsible for everything done under the business's workspace, including by team members and crew.
- **Team members and crew.** You may add team members (office staff with admin access) and crew (employees who use the employee app). You are responsible for giving them access only to what they need, for removing access when they leave, and for their conduct in the Service.
- **Credentials.** Keep passwords, QR onboarding links and calendar feed links private. Tell us at once if you think an account has been compromised. You can sign out other devices from Settings.
- **Accuracy.** Keep your business details (legal name, ABN, address, contact details, bank details) accurate. They are printed on the quotes, invoices and reports you send.
- **Age.** You must be at least 18 to create an account. Crew members must be at least 15 and added by their employer.

3. Your data and your clients' data

- **You own your data.** Everything you enter or upload (clients, leads, quotes, invoices, projects, photos, timesheets, staff records, messages) stays yours. We only use it to run the Service for you, as described in the Privacy Policy.
- **Each business is separate.** Your workspace is isolated from every other business on Paint Trade HQ. Nobody outside your workspace can see your data, and you cannot see theirs.
- **You are responsible for the people in your records.** You confirm that you have the right to enter your clients', leads' and staff members' details, and that you will handle their personal information lawfully, including under the *Privacy Act 1988 (Cth)* where it applies to you. You are the party they should contact about their information; we act on your instructions.
- **Messages you send.** SMS and email sent through the Service (including automated follow-ups, reminders and review requests) are sent by you, in your name. You must comply with the *Spam Act 2003 (Cth)*: only message people who have agreed to hear from you or with whom you have a business relationship, identify your business, and honour opt-outs. The Service stops automated messages to a client who replies STOP or is marked opted-out; you must not work around that.
- **Photos and documents.** You must have permission to photograph a client's property and to upload staff documents (licences, IDs, contracts). See the Privacy Policy for how photos are stored and shared.

4. Quotes, invoices, payments and contracts

- **We are a tool, not a party.** Quotes, variations, invoices, credit notes, completion reports and contracts are your documents to your clients. You set the prices, terms, warranty and tax treatment. We do not check them.
- **Tax.** You are responsible for GST, invoice requirements under Australian tax law, and keeping records for the ATO.

- **Client acceptance.** When a client accepts a quote or approves a variation through their link, the Service records who accepted, when, and from which address. Whether that acceptance is binding between you and your client is a matter for you and them.
- **Online payments.** Card payments on client links are processed by Stripe under Stripe's terms and fees. Money goes to your Stripe account, not to us. Bank-transfer payments you record yourself are your record only.
- **Library prices and AI price suggestions** are starting points. Check them before you rely on them.

5. Integrations you connect

You may connect Google Drive, Google Calendar, Apple Calendar (iCloud), Gmail, Microsoft 365 or IMAP email, Twilio for SMS, and Stripe for payments. Each is governed by its provider's terms. We access them only for the purpose you connected them for (for example, storing photos in your Drive, showing your calendar, sending and receiving messages) and you can disconnect them at any time in Settings. We are not responsible for changes, outages or charges from those providers.

6. AI features

Some features use an AI model (for example the morning briefing, client summaries, quote text polishing, and, when enabled, the assistant). AI output can be wrong, incomplete or out of date. It is a draft for you to check, not advice. Do not send AI output to a client or staff member without reading it. Do not rely on it for legal, tax, safety or employment decisions. AI features only see your own workspace's data.

7. Acceptable use

You must not:

- use the Service for anything unlawful, or to send spam, threats or misleading messages;
- upload malware, or try to access another business's workspace, our systems or other users' accounts;
- copy, resell, reverse-engineer or build a competing product from the Service;
- remove branding, notices or watermarks;
- use automated tools to scrape or overload the Service;
- enter personal information about anyone you do not have a lawful reason to hold.

We may suspend or remove content or accounts that break these rules. We will tell you why unless the law prevents it.

8. Fees and plans (after the tester program)

When paid plans start: prices will be shown in Australian dollars including GST; you will be asked to agree before any charge; billing is monthly or yearly in advance through Stripe; you can cancel any time and keep access to the end of the paid period; we may change prices with at least 30 days' notice, which applies from your next renewal. Refunds are given where the *Australian Consumer Law* requires them and otherwise at our discretion.

9. Availability, backups and support

We aim to keep the Service running but do not promise any uptime during the tester program. We take regular backups for our own recovery, but those are not a substitute for your own copies (see section 1). Support is by email at [support email] during Australian business hours; response times are best-effort.

10. Ending your account and getting your data out

- **You can leave any time.** Ask us to close the account, or stop using it.
- **Export.** While your account is open you can download your quotes, invoices, credit notes and reports as PDF and your client, invoice and timesheet lists as CSV. Ask us if you need a full export.
- **Deletion.** After an account is closed we keep its data for 30 days so you can change your mind, then delete it from our live systems. Backups are overwritten within a further 60 days. We may keep records we must keep by law (for example tax records of payments made to us).
- **We may close an account** for breach of these terms, if it is unused for 12 months, or if we shut the Service down. We will give at least 30 days' notice where we can, so you can export your data.

11. Intellectual property

We own the Service, its design, code, templates and the Paint Trade HQ name and logo. You get a non-exclusive, non-transferable licence to use the Service for your business while your account is open. You keep ownership of your data and of documents you create with the Service. You give us a licence to store, copy and transmit your data only as needed to run the Service for you.

12. Warranties and liability

- Nothing in these terms excludes rights you have under the *Australian Consumer Law* that cannot be excluded. Where a guarantee applies and can lawfully be limited, our liability is limited to supplying the Service again or paying the cost of having it supplied again.
- Otherwise, the Service is provided "as is" during the tester program. We do not promise it is error-free, secure, or fit for a particular purpose.
- To the extent the law allows, we are not liable for loss of profit, business, data or goodwill, or for indirect or consequential loss, and our total liability to you in any 12-month period is

limited to the greater of the fees you paid us in that period and AUD 100.

- We are not liable for the acts of third-party providers (section 5), for your clients or staff, or for documents and messages you send.

13. Indemnity

You indemnify us against claims, losses and costs arising from your breach of these terms, your unlawful use of the Service, or documents and messages you send to clients or staff, except to the extent we caused the loss.

14. Changes to the Service or these terms

We may change the Service at any time. We may change these terms by posting a new version and, for changes that reduce your rights, emailing account owners at least 14 days before they take effect. Continuing to use the Service after that date means you accept the new terms. The current version and its date are always shown at the top of this page.

15. General

These terms are governed by the laws of [Victoria], Australia, and the courts of that state. If any part is unenforceable, the rest still applies. Our failure to enforce a right is not a waiver. You may not assign these terms without our consent; we may assign them to a successor of the business. Notices to you go to the account owner's email. Notices to us go to [legal email].

16. Contact

[Legal entity name] · ABN [ABN] · [address] · [support email] · [legal email]